Minutes of the Special Meeting of the Council of the Corporation of the Town of Ajax Held Electronically Tuesday, November 29, 2022

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Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 1:07 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Business to be Considered

3.1 Tilling of the Lower Duffins Creek Wetland

Regional Councillor Dies and Regional Councillor Crawford introduced the motion and reviewed its contents. Council Members asked questions regarding the Town's authority over land use planning decisions in a neighbouring municipality, opportunities to consult with Pickering Council, status of the Toronto and Region Conservation Authority (TRCA) investigation, and who is responsible for altering the wetlands. Stev Andis, Manager of Planning and Christie McLardie, Manager of Public & Strategic Affairs, responded to questions from Council Members.

Main Motion

Moved by: J. Dies
Seconded by: M. Crawford

WHEREAS Ajax Council passed a motion on November 9, 2020, opposing the development of the provincially significant Lower Duffins Creek Wetland, and worked closely with environmental groups, First Nations stakeholders, and community members to successfully halt plans to pave over the 57 acres of wetland for a massive warehouse development;

AND WHEREAS the Narwhal reported on November 4, 2022, that approximately 90% of the Lower Duffins Creek Wetland in the Bayly Street and Squires Beach Road area of Pickering, had been cleared and tilled;

AND WHEREAS the issue is under investigation by the Toronto and Region Conservation Authority as the activity is in contravention to Ontario regulation 166/06 under the Conservation Authorities Act, which states no person may change or interfere in any way with a wetland without the permission of a conservation authority;

AND WHEREAS Kelly LaRocca, Chief of the Mississaugas of Scugog Island First Nation (MSIFN), released a statement on November 21, 2022 expressing the shock of the MSIFN at the "reckless and unnecessary destruction" and calling for the "protection of this significant part of our ecosystem";

AND WHEREAS revisions to the Ontario Wetland Evaluation System have been proposed under Bill 23, *the More Homes Built Faster Act, 2022* which would result in a tilled site no

longer being considered a wetland;

AND WHEREAS Ajax has serious concerns regarding any devaluing of protections for Ontario's wetlands, and has been a proponent of local wetlands, as exemplified by the Kerrison Road Wetland Restoration Project, which has expanded marsh and swamp wetland habitat, decommissioned old farm ponds and associated infrastructure, restored and stabilized existing stream bank erosion, and managed invasive species;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council strongly opposes the blatant and purposeful damage of any wetland;

2. Ajax Council joins Mississaugas of Scugog Island First Nation in its shock regarding the destruction of the Lower Duffins Creek Wetland;

3. Ajax Council opposes proposed revisions to the Ontario Wetland Evaluation System which changes the classification of a wetland after tillage; and

4. A copy of this motion be sent to the Honourable Doug Ford, Premier of Ontario, the Honourable Steve Clark, Minister of Municipal Affairs and Housing, the Honourable David Piccini, Minister of Environment, Conservation and Parks, Patrice Barnes, MPP Ajax, the Honourable Peter Bethlenfalvy, Minister of Finance and MPP Pickering, John Henry, Durham Region Chair, Kevin Ashe, Pickering Mayor, and John MacKenzie, CEO at Toronto and Region Conservation Authority.

Amendment

Moved by: N. Henry
Seconded by: None

That recommendation no. 1 be amended by removing the words "blatant and purposeful".

MOTION LOST (no seconder)

Main Motion

Moved by: J. Dies
Seconded by: M. Crawford

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AND WHEREAS revisions to the Ontario Wetland Evaluation System have been proposed under Bill 23, *the More Homes Built Faster Act, 2022* which would result in a tilled site no longer being considered a wetland;

AND WHEREAS Ajax has serious concerns regarding any devaluing of protections for Ontario's wetlands, and has been a proponent of local wetlands, as exemplified by the Kerrison Road Wetland Restoration Project, which has expanded marsh and swamp wetland habitat, decommissioned old farm ponds and associated infrastructure, restored and stabilized existing stream bank erosion, and managed invasive species;

NOW THEREFORE BE IT RESOLVED THAT:

5. Ajax Council strongly opposes the blatant and purposeful damage of any wetland;

6. Ajax Council joins Mississaugas of Scugog Island First Nation in its shock regarding the destruction of the Lower Duffins Creek Wetland;

7. Ajax Council opposes proposed revisions to the Ontario Wetland Evaluation System which changes the classification of a wetland after tillage; and

8. A copy of this motion be sent to the Honourable Doug Ford, Premier of Ontario, the Honourable Steve Clark, Minister of Municipal Affairs and Housing, the Honourable David Piccini, Minister of Environment, Conservation and Parks, Patrice Barnes, MPP Ajax, the Honourable Peter Bethlenfalvy, Minister of Finance and MPP Pickering, John Henry, Durham Region Chair, Kevin Ashe, Pickering Mayor, and John MacKenzie, CEO at Toronto and Region Conservation Authority.

CARRIED

Recorded Vote

In Favour: Regional Councillor Dies, Councillor Henry, Regional Councillor Lee, Councillor Tyler Morin, Councillor Bower, Regional Councillor Crawford, Mayor Collier

Opposed: None

3.2 **Requesting More Time and Consultation on Bill 23, the More Homes Built Faster Act, 2022**

Regional Councillor Dies and Regional Councillor Lee introduced the motion and reviewed its contents. Council Members asked about the outcome of conversations with MPP Barnes, namely changes to development charges. Mayor Collier responded to the question.

Moved by: J. Dies
Seconded by: S. Lee

WHEREAS on October 25, 2022, the province introduced Bill 23, the More Homes Built Faster Act, 2022 (Bill 23) which, if passed, will make substantial changes to multiple pieces of existing legislation and result in significant impacts to municipal responsibilities, planning processes, and finances;

AND WHEREAS keeping in mind the scale and significance of the proposed changes, the province has not provided sufficient time to engage in fulsome, effective, and meaningful consultation with municipalities or to identify the unintended consequences and serious implications that may arise from these changes, and which may ultimately frustrate the goal of building more homes faster;

AND WHEREAS the Town of Ajax supports Ontario's goal to build 1.5 million homes over the next decade to address the housing crisis, and has already taken steps to address the issue locally, by undertaking numerous studies, including the Town of Ajax Housing Strategy, the Central Ajax Intensification, Servicing & Transportation Strategy, and identifying areas within the existing urban area appropriate for increased residential density;

AND WHEREAS Town staff have reviewed the proposed changes to Development Charges, Parkland Dedication, and Community Benefit Charges and have quantified the anticipated financial impact on Development Charges over a 10-year period to be a reduction of approximately $19.3M, equating to $1.9M per year or an annual tax levy increase of 2.5% and which does not include funding shortfalls related to other exclusions, discounts, Parkland Dedication and Community Benefits Charges;

AND WHEREAS the resulting budget constraints are expected to significantly delay investments in growth-related infrastructure in the Town of Ajax;

AND WHEREAS Bill 23 may result in serious impacts to climate protections and a downloading of costs, in relation to changes to Conservation Authorities and Ontario's Wetland Evaluation System (OWES), may limit the Town's ability to improve energy performance, reduce greenhouse gas emissions and create a climate resilient community through the Ajax Green Standard, and may lead to increased flooding;

AND WHEREAS Bill 23 would enact the Supporting Growth and Housing in York and Durham Regions Act, 2022, which despite the opposition of Ajax Council, would require the expansion of the existing York Durham Sewage System to bring wastewater from York Region to the Duffin Creek Water Pollution Control Plant (WPCP). The Town of Ajax has asked for assurance that all conditions outlined by the York Region Wastewater Advisory Panel are met, including modeling to confirm the accommodation of flow within the existing and expanded infrastructure and that the Intrabasin Transfer Agreement will be sufficient to support the servicing strategy to 2051 and beyond, that the newest innovative treatment technologies will be utilized at the Duffin Creek WPCP, and that additional costs associated with supporting growth in Upper York would not be paid for by residents of Durham Region;

AND WHEREAS Mayor Shaun Collier sent a letter on November 11, 2022, to the Honourable Steve Clark, Minister of Municipal Affairs and Housing, requesting that the comment period on postings related to Bill 23 be extended to at least December 31, 2022, and on November 28, 2022, to the Honourable David Piccini, Minister of Environment, Conservation and Parks requesting that he address questions and concerns regarding the expansion of the York Durham Sewage System;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council requests the province engage in a fulsome consultation with municipalities and adopt amendments to Bill 23 that will mitigate the unintended consequences of the bill, including financial burdens that will prevent municipalities from getting more homes built faster, result in a greater burden on municipal taxpayers, and lead to significant negative environmental impacts; and

2. A copy of this motion be sent to the Honourable Doug Ford, Premier of Ontario, the Honourable Steve Clark, Minister of Municipal Affairs and Housing, Patrice Barnes, MPP Ajax, all local Durham MPPs, the Ontario Big City Mayors, and the Association of Municipalities of Ontario.

CARRIED

Recorded Vote

In Favour: Regional Councillor Dies, Councillor Henry, Regional Councillor Lee, Councilor Tyler Morin, Councillor Bower, Regional Councillor Crawford, Mayor Collier

Opposed: None

4. Confirming By-law

Moved by: L. Bower
Seconded by: R. Tyler Morin

That By-law number 69-2022 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its special meeting held on November 29, 2022 be read a first, second and third time and passed.

CARRIED

5. Adjournment

Moved by: M. Crawford
Seconded by: J. Dies

That the November 29, 2022 special meeting of the Council of the Town of Ajax be adjourned. (1:48 p.m.)

CARRIED

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Mayor

_____
D-Clerk